

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Paul Baron	Team: Team # 4	CCRB Case #: 200901473	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 11/28/2007 7:20 PM	Location of Incident: Intersection of Logan Avenue and Phillips Road		18 Mo. SOL 5/28/2009	Precinct: 45	
Date/Time CV Reported Fri, 01/30/2009 10:41 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 01/30/2009 10:41 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Robert Rodriguez	14441	926015	PBBX TF

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Thomas Nicoletti	10662	925830	PBBX TF

Officer(s)	Allegation	Investigator Recommendation
A . POM Robert Rodriguez	Discourtesy: PO Robert Rodriguez spoke obscenely to § 87(2)(b)	A . Unfounded
B . POM Robert Rodriguez	Discourtesy: PO Robert Rodriguez spoke rudely to § 87(2)(b)	B . Unfounded
C . POM Robert Rodriguez	Abuse: PO Robert Rodriguez threatened § 87(2)(b) with the use of force.	C . Unfounded

Synopsis

On November 28, 2007, at approximately 7:30 PM, § 87(2)(b) was in his car following § 87(2)(b) when they both made a left turn from Logan Avenue on to Phillips Road, in the Bronx. § 87(2)(b) was pulled over by PO Robert Rodriguez and PO Thomas Nicoletti, and § 87(2)(b) pulled up behind § 87(2)(b) and the officers. PO Rodriguez approached § 87(2)(b) and obtained his license and registration, and allegedly told him to “stay in the fucking car,” (**Allegation A**). PO Rodriguez approached § 87(2)(b) and asked him for his identification. § 87(2)(b) took out his Detective’s Endowment Association card, and PO Rodriguez stated, “take this shit away before I drag you out of the street and sweep the street with you,” (**Allegation B and Allegation C**). § 87(2)(b) and § 87(2)(b) were each issued five summonses by PO Rodriguez and released.

§ 87(2)(g)

The case was received by the mediation unit on March 2, 2009. Mediation was attempted between PO Rodriguez and § 87(2)(b) on May 20, 2009. § 87(2)(b) subsequently decided he wanted a full investigation performed and the case was returned for investigation on the same day. The statute of limitations expired on May 28, 2009.

Summary of Complaint

On January 30, 2009, § 87(2)(b) filed a complaint with the CCRB against an NYPD officer. On February 20, 2009, § 87(2)(b) provided a telephone statement to the CCRB. On June 5, 2009, § 87(2)(b) was interviewed at the CCRB. § 87(2)(b)

§ 87(2)(g)

On November 28, 2007, at approximately 7:30 PM, § 87(2)(b) was alone, in his car, which was stopped on Phillips Road, in the Bronx, at a stop sign. He had been following his friend, § 87(2)(b) started to make a left turn when a white marked police car pulled up and cut him off. PO Robert Rodriguez, who was identified by his name on the summonses and was described as Hispanic, 5'6" and 215 pounds, with short hair, was in the passenger seat. He exited the vehicle and made a remark to § 87(2)(b) could not hear what was said. PO Rodriguez got back in the vehicle, and his partner drove away. § 87(2)(b) described PO Rodriguez’s partner as an Irish male, about 6’ with an average build, a receding hairline, and who was between 35-40 years old. Both officers were in uniform. The vehicle did not have on any lights or sirens. § 87(2)(b) finished his left turn, followed the officers down the street, and parked behind the officers at the intersection of Phillips Road and Logan Avenue; the officers had parked behind § 87(2)(b) s vehicle.

After § 87(2)(b) pulled behind the officers, they turned on the lights of their patrol car for the first time. PO Rodriguez exited the vehicle, and asked § 87(2)(b) for ID. § 87(2)(b) took out his DEA card, which he obtained from a friend. PO Rodriguez stated “I didn’t ask you for your DEA card, I asked you for your license and registration.” He also said “take this shit [DEA card] away before I drag you out of the car and sweep the streets with you.” In his initial complaint and first phone statement, § 87(2)(b) stated that PO Rodriguez also called him a “son of a bitch,” but he did not reiterate this in his verified statement. § 87(2)(b) provided him with his license and registration. PO Rodriguez said “I was going to give you one ticket; now I’m going to give you three.” He told § 87(2)(b) to pull his car in front of § 87(2)(b) s, and he complied. PO Rodriguez went back to his car and wrote five summonses for § 87(2)(b) When PO Rodriguez came back to § 87(2)(b) s vehicle, his partner accompanied him.

§ 87(2)(b) was issued five summonses by PO Rodriguez and the officers left. The summonses were for failure to comply with a lawful order given by a police officer, driving through a stop sign, failure to yield to an authorized emergency vehicle, failure to signal, and an improper left turn not from center line. § 87(2)(b) was in his car for the entire incident, with his window open. § 87(2)(b) drove away from the incident location after he was issued his tickets. PO Rodriguez did not state any further discourteous language towards § 87(2)(b). § 87(2)(b) did not drive through any stop signs that evening, did not cross the center line of the street, and signaled when he made his left turn on to Phillips Road.

A few months later, § 87(2)(b) went to court for his summonses. § 87(2)(b) was found guilty of multiple summonses and has filed an appeal. PO Rodriguez affirmed in court that he was correct in issuing the summonses. § 87(2)(b) alleged that PO Rodriguez lied under oath, stating falsely that he had to ask § 87(2)(b) for his information six times. § 87(2)(b) has seen PO Rodriguez twice since his incident, at his court date on January 28, 2009, which had been delayed multiple times, and at his attempted mediation at the CCRB. § 87(2)(b) filed his complaint after his convictions for the summonses. He was upset that the judge believed PO Rodriguez over him at his court date and stated that PO Rodriguez was a “psychopath.” He stated that he was not upset with the financial implications of the summonses.

CCRB Statement: § 87(2)(b)

On June 8, 2009, § 87(2)(b) was interviewed at the CCRB. He is a forty year old white male with brown hair and brown eyes, who is 6’ and weighs 200 pounds. On November 28, 2007, at approximately 7:20 PM, § 87(2)(b) was driving home along Logan Avenue in the Bronx and he was alone in his vehicle. He was being followed by his friend, § 87(2)(b). § 87(2)(b) pulled up to a four way stop sign and waited three seconds before making a left turn. § 87(2)(b) started to drive when he noticed lights of a patrol car flashing behind him. He pulled over to the side of the road after half a block, and the patrol car double parked to the side of his vehicle.

PO Rodriguez exited his vehicle and approached § 87(2)(b). He described PO Rodriguez as a chubby Hispanic male, about 6’0” and 200 pounds. PO Rodriguez’s partner was a white male who looked younger than PO Rodriguez and was identified through the investigation as PO Nicoletti. PO Rodriguez asked § 87(2)(b) for his license and registration. Soon after, § 87(2)(b) pulled up a few feet behind § 87(2)(b)’s car. PO Rodriguez asked § 87(2)(b) if § 87(2)(b)’s vehicle had been chasing him, and § 87(2)(b) stated that he had been following him to his house. PO Rodriguez took § 87(2)(b)’s license and registration and told him to stay in the car. The third time § 87(2)(b) mentioned this part of the interaction, he added that PO Rodriguez told him to stay in the “fucking” car. At some point, PO Nicoletti exited the patrol car and shined his flashlight on § 87(2)(b)’s windshield.

PO Rodriguez approached § 87(2)(b)’s car and § 87(2)(b) rolled down his window so he could stick his head out and see what was happening. § 87(2)(b) could not hear any of the conversation between § 87(2)(b) and PO Rodriguez. His window was 1 ½ car lengths from § 87(2)(b)’s window. After one to two minutes, § 87(2)(b) heard PO Rodriguez state “put that shit away before I pull you from the car and drag you in the street.” He heard § 87(2)(b) ask the officer what he meant about dragging him.

PO Rodriguez returned to § 87(2)(b)’s car and issued him five summonses. The summonses were for failure to stop at a stop sign, improper left turn, insufficient turn signal, un-registered vehicle for more than 60 days, and for speed not reasonably prudent. § 87(2)(b) asked PO Rodriguez why he was giving him five tickets and why PO Rodriguez wanted to hurt him. PO Rodriguez told him to tell it to the judge. § 87(2)(b) and § 87(2)(b) never cursed or raised their voices at the officers during the incident. § 87(2)(b) spoke with § 87(2)(b) after the incident, which is when he found out that § 87(2)(b) had tried to show the officer a PBA card. § 87(2)(b) also told him what PO Rodriguez had said to him, which was the same statement that § 87(2)(b) stated he heard PO Rodriguez say. § 87(2)(b) went to Albany to handle his summonses at court. § 87(2)(b) was found guilty of three summonses and has appealed the decision. § 87(2)(b) stated he thought PO Rodriguez should not be a police officer.

Results of Investigation

Civilian Witnesses

Both § 87(2)(b) and § 87(2)(b) stated that they had been driving alone and that there were no civilian witnesses to the FADO allegations. No witnesses independently came forward to provide a statement.

Officer Identification

§ 87(2)(b) and § 87(2)(b) identified PO Robert Rodriguez by name and physical description. § 87(2)(b) saw PO Rodriguez at his mediation attempt and at the conviction for his summonses, and stated that he was the correct subject officer. PO Rodriguez's memo book indicated that he was partnered with PO Nicoletti during the incident.

CCRB Statement: PO Robert Rodriguez

On June 19, 2009, the CCRB interviewed PO Robert Rodriguez, who is assigned to the Patrol Borough Bronx Task Force. PO Rodriguez is § 87(2)(b). On November 28, 2007, PO Rodriguez worked from 12:00 PM to 2:05 AM, assigned to traffic enforcement with PO Nicoletti. He was dressed in uniform and was assigned to marked RMP #2069.

Memo book entries- 11/28/07-PO Nicoletti Recorder

1920- 279-6 to 283-3

1920- 284-4 to 288-1

On November 28, 2007, at 7:20 PM, PO Rodriguez was working traffic safety and stop sign enforcement with PO Nicoletti. They were in a marked car, parked southbound on Logan Avenue at the intersection of Phillips Avenue. PO Rodriguez observed a silver Mercedes, driven by § 87(2)(b) traveling westbound at about 30 miles an hour. It drove through the stop sign without slowing speed, or signaling, and made a left turn on to Logan Avenue, causing his tires to screech. PO Nicoletti started to follow the vehicle and PO Rodriguez turned on the turret lights, when a second car, a suburban driven by § 87(2)(b) made the same left turn without signaling or slowing down. The suburban almost drove into PO Rodriguez's vehicle, and the officers had to swerve to avoid being hit. The suburban stopped and PO Nicoletti drove up to its side. PO Rodriguez got out of the patrol car and told § 87(2)(b) to stay at that location and wait for him to return. § 87(2)(b) made no indication of hearing the comment, so PO Rodriguez repeated the command and § 87(2)(b) stated "ok." PO Rodriguez did not use discourteous language.

PO Rodriguez returned inside the patrol car and PO Nicoletti drove after § 87(2)(b)'s vehicle, which had accelerated to about 55 miles per hour. PO Rodriguez has been trained to estimate the speed of a vehicle by sight. § 87(2)(b) stopped within a block and pulled over to the side of the vehicle and PO Nicoletti parked behind him. Within 10 seconds, § 87(2)(b) pulled his car up behind the patrol car. PO Rodriguez was initially going to approach § 87(2)(b)'s vehicle, but since § 87(2)(b) had followed the officers instead of staying at the intersection, he approached him instead. PO Nicoletti walked up to § 87(2)(b)'s car and dealt with him. PO Rodriguez saw about four unknown people inside of § 87(2)(b)'s car. § 87(2)(b)'s driver's window and § 87(2)(b)'s driver's window were more than two car lengths, approximately 28 feet apart from each other.

PO Rodriguez went to § 87(2)(b)'s window and § 87(2)(b) asked him what was wrong. PO Rodriguez could not hear any of the interaction that PO Nicoletti had with § 87(2)(b). PO Rodriguez told § 87(2)(b) that he had committed moving violations and that he was going to need his license and registration. § 87(2)(b) pulled out a DEA card and said "no, take this instead, and I'll just go." § 87(2)(b) acted nonchalant, like he believed he was above the law. PO Rodriguez informed § 87(2)(b) that he was required to hand over his license. PO Rodriguez asked § 87(2)(b) about five times to provide his license and registration, and each time § 87(2)(b) tried to provide his DEA card. PO Rodriguez raised his voice and told § 87(2)(b) that if he did not provide his license, PO Rodriguez would remove him from the vehicle, place him in handcuffs and take him to the stationhouse. PO Rodriguez never stated "take this shit away," and never threatened to "drag" § 87(2)(b) from

the car or “sweep the streets” with him. § 87(2)(b) provided his license and registration and PO Rodriguez returned to his patrol car. PO Rodriguez never threatened to give § 87(2)(b) more summonses than he initially intended to. He personally observed all the violations that he charged against § 87(2)(b) and § 87(2)(b) when he pulled them over, except the summons for § 87(2)(b)'s unregistered vehicle.

PO Rodriguez issued § 87(2)(b) and § 87(2)(b) five summonses each. PO Rodriguez had no verbal interaction with § 87(2)(b) until he handed him the summonses that he had written. PO Rodriguez never told § 87(2)(b) to “stay in the fucking car.” PO Rodriguez only told § 87(2)(b) “Here are your summonses; the instructions are on the back.” At no point in the incident did PO Rodriguez use or hear anyone say the phrase “son of a bitch.” PO Rodriguez returned to § 87(2)(b)'s car to hand him the tickets, and described him as being shocked that he was not getting off without a summons. Later in the evening, PO Rodriguez received a call from a detective with a European name asking him to squash the summonses, but PO Rodriguez refused. After a year and a half, PO Rodriguez went to court for § 87(2)(b) and § 87(2)(b)'s summonses and they were convicted of their offenses. § 87(2)(b) had one summons dismissed, for crossing a yellow line, and § 87(2)(b) was convicted of all of his summonses. A few days after the court date, PO Rodriguez was notified that a CCRB complaint was filed against him.

CCRB Statement: PO Thomas Nicoletti

On June 19, 2009, the CCRB interviewed PO Thomas Nicoletti, who is assigned to the Patrol Borough Bronx Task Force. PO Nicoletti is § 87(2)(b)

On November 28, 2007, PO Nicoletti worked from 12:00 PM to 12:35 AM, assigned to traffic enforcement with PO Rodriguez. He was dressed in uniform and was assigned to marked RMP #2069. PO Nicoletti had no relevant memo book entries for this incident.

On November 28, 2007, at 7:20 PM, PO Nicoletti was parked on Logan Avenue at the intersection of Phillips Avenue, which is a four way stop intersection, with PO Rodriguez. It was dark out, but it was still a well lit location. PO Nicoletti was the driver of the RMP. Two vehicles traveling westbound on Phillips Avenue drove at excessive speeds and made left turns onto Logan Avenue without stopping at a stop sign.

PO Nicoletti started his vehicle and PO Rodriguez turned on the vehicle's emergency lights. As PO Nicoletti started to drive to follow § 87(2)(b) who had been driving the second vehicle, almost hit the RMP. § 87(2)(b) stopped his vehicle and PO Nicoletti pulled up next to it. PO Rodriguez told § 87(2)(b) to stay put and the officers would come back for him. PO Rodriguez did not curse at § 87(2)(b). PO Nicoletti drove off to follow § 87(2)(b). PO Nicoletti did not observe any civilians almost get struck by his RMP. § 87(2)(b) pulled over within a block and PO Nicoletti parked behind him. Within a few seconds, § 87(2)(b) pulled up and parked behind the RMP.

PO Nicoletti approached § 87(2)(b) and asked him for his license and registration, while PO Rodriguez approached § 87(2)(b). There were three to four unknown passengers in the vehicle with § 87(2)(b). PO Nicoletti told § 87(2)(b) why he was stopped. § 87(2)(b) stated that he had been in a rush and that § 87(2)(b) was following him. § 87(2)(b) provided his information and was apologetic to PO Nicoletti. PO Nicoletti observed PO Rodriguez speaking with § 87(2)(b) but could not hear any of their conversation. PO Rodriguez was about two car lengths away from PO Nicoletti. PO Nicoletti took § 87(2)(b)'s information back to his patrol car, where he ran both vehicles' plates. At this point, PO Rodriguez had not had any verbal interaction with § 87(2)(b). PO Nicoletti and PO Rodriguez never told § 87(2)(b) to stay in the “fucking” car at any time. PO Nicoletti did not exit his RMP again during the incident.

While PO Rodriguez spoke with § 87(2)(b) PO Nicoletti never heard him state “put that shit away.” He never heard PO Rodriguez state he would pull or drag § 87(2)(b) from the car and sweep the streets with him. He never heard PO Rodriguez use the phrase “son of a bitch.” PO Rodriguez returned to the RMP and wrote out the summonses for both § 87(2)(b) and § 87(2)(b). PO Rodriguez told PO Nicoletti that § 87(2)(b) had tried to use a DEA card to get out of the

summonses. PO Nicoletti never heard PO Rodriguez threaten to issue § 87(2)(b) extra summonses. He stated he knew that when they pulled both vehicles over that each would be issued summonses. PO Nicoletti was not certain what the summonses were for, but stated he observed excessive speed and not stopping for the stop sign. PO Rodriguez walked to § 87(2)(b)'s car and issued him his summonses. PO Nicoletti did not hear PO Rodriguez curse at § 87(2)(b). PO Rodriguez then issued the summonses to § 87(2)(b). PO Nicoletti did not hear § 87(2)(b) or § 87(2)(b) curse or yell during the incident.

Medical Documents

§ 87(2)(b) provided a report from § 87(2)(b), indicating that he has poor hearing. The report was from § 87(2)(b), and stated that he noticed decreased hearing in his left ear after a plane flight one year prior. The report stated he worked where there was loud noise, without ear protection.

§ 87(2)(b)'s Summons Disposition and Criminal Conviction History

§ 87(2)(b) had one summons dismissed by a judge on § 87(2)(b); for improper left turn, but was found guilty of the other four summonses and was ordered to pay a total of \$160. He has no criminal conviction history in New York City.

§ 87(2)(b)'s Summons Disposition and Criminal Conviction History

§ 87(2)(b) had two summonses dismissed by a judge on § 87(2)(b), for improper left turn and for insufficient turn signal. He was found guilty of the other three summonses and ordered to pay a total of \$205. § 87(2)(b) has no criminal conviction history in New York City.

Civilian's CCRB History

Other than the current case, § 87(2)(b) and § 87(2)(b) have never filed a CCRB complaint.

Subject Officer's CCRB History

PO Robert Rodriguez has zero substantiated allegations of misconduct in his nine years with the NYPD.

Conclusions and Recommendations

Pleading of Allegations

For Allegations A, B and C, § 87(2)(b) and § 87(2)(b) identified PO Rodriguez by name and physical description as the officer that used discourteous language and threatened § 87(2)(b) with force.

Undisputed Facts

It is undisputed that PO Rodriguez and PO Nicoletti pulled over § 87(2)(b) and § 87(2)(b) and that § 87(2)(b) parked behind the officers' patrol car, which was parked behind § 87(2)(b)'s vehicle. It is undisputed that PO Rodriguez asked § 87(2)(b) for his license and registration, and that § 87(2)(b) attempted to provide PO Rodriguez with a DEA card before finally providing the requested information. § 87(2)(b) and § 87(2)(b) were each issued five summonses and found guilty of some of the violations.

Disputed Facts

It is disputed which officer asked for § 87(2)(b)'s license and registration. It is disputed that PO Rodriguez ever used the phrases "shit," or "stay in the fucking car." It is disputed that PO Rodriguez threatened to drag § 87(2)(b) from his car and "sweep the streets" with him. It is disputed that § 87(2)(b) and § 87(2)(b) committed the moving violations that they were issued summonses for.

Assessment of Evidence

§ 87(2)(g)
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Allegations not pleaded

§ 87(2)(b) stated that PO Rodriguez called him a “son of a bitch,” but he was unable to clarify exactly when this happened, and did not make this allegation in his verified CCRB statement. Additionally, no one that provided a statement backed up this allegation. As such, it will not be pleaded.

A) Discourtesy: PO Robert Rodriguez spoke obscenely to § 87(2)(b)

§ 87(2)(g)

B) Discourtesy: PO Robert Rodriguez spoke rudely to § 87(2)(b)

C) Abuse of Authority: PO Robert Rodriguez threatened § 87(2)(b) with the use of force.

§ 87(2)(g)

Investigator: Paul Baron

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: